



HALACHIC DIGEST

יום הכיפורים ה'תשע"ד

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Comments welcome and appreciated

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לעלוי נשמת הרב יצחק ז"ל בן יבלחט"א הרב אליעזר צבי זאב צירקינד שליט"א

Erev Shabbos Yom Kippur

- From this morning till the end of Tishrei, we do not say *Tachanun*¹.

כפרות

- The best time to do *kaparos* is the last third of the night before *alos hashachar* of Erev Yom Kippur². (Thus between approximately 3am and 510am is optimal).
- However, you may do *kaparos* any weekday of *Aseres Yemei Teshuva*. If you missed it, it can still be done on *Hoshana Rabba*³.
- A pregnant woman needs 3 chickens, 2 females and one male, since it is a *ספק* what she will give birth to⁴.
- Even if the gender was seen by ultra sound, according to some you would still take 3 as they are not conclusive⁵.
- If the *שחיטה* was not properly done, you have to redo the *kapara*⁶.
- If the *שחיטה* was properly done but the chicken was found to be treif later you have fulfilled your obligation⁷.
- The mitzvah of covering the blood belongs to the *שוחט*, but if you want to partake in the mitzvah you can obtain his permission⁸.
- The *bracha* is "אקב"ו על כסוי דם בעפר"⁹.

¹ שו"ע סי' רל"א:א

² מט"א סי' תרה:ג ומשנ"ב סק"ב

³ שו"ת שארית שמחה סי' ח'

⁴ שו"ע"ר סי' תרה:ג סידור הרב

⁵ שו"ת קנה בושם

⁶ שו"ת כנף רננה סי' נ"ט

⁷ א"א בוטשאש מהד"ת מט"א בקצ"מ תרה סקי"ב

⁸ עי' מט"א שם סע' ח'

⁹ מט"א שם



- For *averos* committed between one's fellow man, Yom Kippur does not atone unless we ask forgiveness from the person who was wronged. Only the *averos* that are committed between us and Hashem will be forgiven on Yom Kippur¹⁰.
- If you haven't asked for forgiveness you should do it before Yom Kippur¹¹.
- If your friend doesn't forgive you then you have to ask up to three times¹².
- Requesting *mechila* each time needs to be done in front of three people¹³.
- (According to Shulchan Aruch HaRav¹⁴ you must always have three people. According to Mishnah Berurah¹⁵, the first time you can ask privately, and if he does not forgive you, take 3 people twice more).
- If it will embarrass the person you are asking *mechila* from, do not specify exactly how you wronged him, only that you wronged him¹⁶.
- The one who was wronged should not be cruel about forgiving¹⁷.
- If you wronged someone in ways that involved other people e.g. by giving him a bad name, then the victim need not forgive according to the letter of the law. However, *midas Chassidus* is to forgive nonetheless¹⁸.

Meals

- Fasting today is forbidden¹⁹. We eat extra and it is considered as if we fasted two days²⁰.
- At meals today, the *challah* is dipped into honey²¹.
- We have an extra meal before *Mincha*, in addition to *Seudah haMafsekes*. Wash for *challah*²².
- We eat food that digests easily - fish, and chicken²³ (but not meat²⁴.)
- We eat *kreplach*²⁵ (made from dough with ground chicken inside). Since we should not eat meat today it should be made with chicken.
- Men should not eat garlic and eggs at all²⁶.
- Milk should not be drunk unless in tea or coffee²⁷.
- At the *Seudah haMafsekes*, don't eat salty foods²⁸.
- The *minhag* is to ask (the *gabbai* / *Rov* etc) for *lekach* (honey cake) and eat it²⁹. The reason is so that if it was decreed on you to have to beg this year, you should be *yotzeh* the begging for the year by begging for *lekach* now.

¹⁰ משנה יומא פ"ה:

¹¹ שו"ע תר"ו: א משנ"ב סק"א

¹² שם

¹³ שם

¹⁴ תר"ו, ב

¹⁵ סק"ב-ג

¹⁶ שם משנ"ב סק"ג

¹⁷ רמ"א שם

¹⁸ מט"א תרו"ד

¹⁹ רמ"א סי' תרד:

²⁰ שו"ע ר סי' תרד: א משנ"ב סק"א

²¹ מט"א סי' תרה סי"ח

²² שד"ח מער' יוה"כ סי' א' ועי' קצה"מ תרה סקל"ט

²³ מט"א תרה סי"ח

²⁴ שם

²⁵ טעמי המנהגים סי' תשל"ו

²⁶ מט"א שם

²⁷ שם

²⁸ נטעי גבריא

Mikvah

- It is a mitzvah to immerse in the mikvah³⁰.
- However If you are ill and cannot go, you may be *yotze* by showering³¹ provided that³²:
 - You stand under the shower for 3 – 4 minutes.³³
 - The hands should be placed loosely in front of the chest so that the water is able to get through everywhere.
 - The bottom of the feet should be moistened beforehand.
- Make sure there are no *chatzitzos* on the body that prevent water from reaching everywhere when immersing in the *mikvah*. Nails should be cut and cleaned, hair should not be tangled, teeth should be flossed and the body should be washed beforehand³⁴.
- Where possible, the *tevilah* of Erev Yom Kippur is for married women too³⁵.

Afternoon

- We give extra Tzedaka before Mincha³⁶. The Baal Shem Tov would say that from the sound of the ringing of the coins, the *klipos*, (= the forces of evil,) are destroyed.
- There are different *minhagim* how (when³⁷ and if) to do *malkus*.
 - Those who have the *minhag* to get *malkus*, use a leather belt.
 - Shulchan Aruch says to do it 39 times on the back whilst reciting “והוא רחום יכפר”.
 - Needless to say, the “whipping” is done very lightly³⁸.
- In Mincha, after the first “יהי לרצון”, say the *Al Cheit*³⁹. The *vidui* is said whilst bending over⁴⁰.
 - If one forgot to say *vidui* and finished Shmonah Esrei he does not have to go back, but rather say it when you remember, even after Mincha⁴¹.
- There is no *Tachnun* nor *Avinu Malkenu* after *Chazoras HaShatz*⁴².

סעודה המפסקת

Seudah haMafsekes is eaten after Mincha⁴³. Since it is a “separating” meal, there should be nothing separating it from the fast.

- We wash and dip the bread in honey⁴⁴.

²⁹ אלף המגן סי' תרד ס"ק ל"ח

³⁰ שו"ע"ר סי' תרו"י"א

³¹ שם

³² מט"א תרו ס"י-י"ב

³³ שו"ת מנחת יצחק

³⁴ מט"א תרו ס"ח

³⁵ שם

³⁶ מט"א תרו ס"ג ראה קצה"מ שם סק"א

³⁷ ראה הערה שלאחרי זה וסידור הרב

³⁸ מט"א שם ס"ז שו"ע"ר סי' תר"ז:י"א-י"ד

³⁹ שו"ע סי' תרו:א

⁴⁰ מט"א תרו ס"א שו"ע"ר שם סעי' ז

⁴¹ ראה פסקי תשובות סי' תרו אות א

⁴² שם

⁴³ שו"ע תרה

⁴⁴ מט"א תרה ס"א

- Fish is not eaten during this meal⁴⁵ because it increases *zera*.⁴⁶
- We complete the *seudah hamafsekes* leaving over time before the fast (at least *licht bentchen* time), because we have to add from *chol* to *kodesh* i.e. to sanctify part of the day before Yom Kippur too⁴⁷.
- If you wish to still eat after *bentching*, have so in mind before *bentching*. Otherwise the fast automatically begins with *bentching*. It is best to articulate this intention verbally⁴⁸.

Before the Fast

- Some immerse again in the *mikvah* after *Seudah haMafsekes* so the *tevila* should be right before Yom Kippur⁴⁹.
- *Licht bentchen*: We light candles as every (Shabbos and) Yom Tov⁵⁰.
- The brochos are להדליק נר של שבת ושל יום הכיפורים and שהחיינו⁵¹.
- Married men light a "*lebedike licht*", a candle to burn till after the fast - this, aside from a Yizkor candle for deceased parents⁵².
- A candle is to be left burning until after the fast because after Yom Kippur we make *havdala* on a candle that was lit before Yom Kippur⁵³.
- We wear non-leather shoes⁵⁴.
- Yom Kippur is a happy Yom Tov. The table should be set with a white table cloth just like any Yom Tov⁵⁵.
- Before Kol Nidrei, bentch your kids with heartfelt emotion⁵⁶. The wording is your choice, but there is a beautiful *nusach* printed in the *Kitzur Shulchan Aruch* and some *machzorim*. Add to the *brochos* as you wish.

Eve of Yom Kippur

- Everybody (married according to most *minhagim*) wears a *tallis* for *Maariv*⁵⁷. The *bracha* on the *Tallis* should be made before sunset⁵⁸.
 - Note: whenever you put on a *Tallis* (except on Shabbos according to some), you first need to check that the strings are kosher unless you wore that same *Tallis* earlier that day (by Shachris)⁵⁹.
- The Minhag is for men (married more the one year⁶⁰) to wear a *Kittel*, a white garb, to show that we are pure and clean of sin as the Angels⁶¹.
- If time allows, one should say the *Al cheit* and *vidui* at sunset as Yom Kippur begins, before Kol Nidrei⁶².

⁴⁵ שם ושם

⁴⁶ קצה המטה שם-א

⁴⁷ שם ושם

⁴⁸ מט"א שם ס"ו ושוע"ר תרה ס"ז

⁴⁹ שו"ע תרו משנ"ב סק"ח שוע"ר ס"ג מט"א שם

⁵⁰ שוע"ר תרי"א

⁵¹ מט"א תריט ס"ד

⁵² ע"פ מהר"ם"ל מפ"ק

⁵³ מט"א תרכ"ד ס"ח

⁵⁴ שו"ע תרי"א: מט"א שם

⁵⁵ מט"א תרט ס"ז

⁵⁶ מט"א תריט ס"ב ועי' אלף למטה שם סק"ה וראה קצה המטה סק"ז

⁵⁷ מט"א תריט ס"ז

⁵⁸ שוע"ר ס"י י"ח: ג שם ועי' אלף למטה סק"ט וקצה"מ ס"ק טו

⁵⁹ שו"ע ס"י ח: ט

⁶⁰ קצה"מ תריט סק"א

⁶¹ שוע"ר תריט ס"ט מט"א תריט ס"ה

- We take out many Sifrei Torah before Kol Nidrei, each according to their Shul custom⁶³.
- It is a big mitzvah to purchase the right to take out the first Sefer Torah at Kol Nidrei.⁶⁴
- Three people, constituting a Beis Din, stand beside the *chazzan* as he begins⁶⁵.
- When the *chazzan* says שהחיינו, everyone joins him and recite the *bracha* themselves and complete it in time to answer אמן to his *bracha*⁶⁶. Ladies (and anyone else) who said the *bracha* earlier during *licht bentchen* should not repeat it⁶⁷.
- *Kabbolas Shabbos* begins with *Mizmor leDovid*.
- "ברוך שם כבוד מלכותו לעולם ועד" is said out loud during the entire Yom Kippur including *kriyas shma al hamitah*⁶⁸
- After *Shmoneh Esreh*, we say ויכולו and מגן אבות, substituting with "המלך הקדוש"
- At the end of Maariv (after מזמור לדוד ה' רועי) we say *kaddish* and ברכו
- We omit *Avinu Malkenu* until the end of *Neilah*
- The five prohibitions of Yom Kippur are eating & drinking, washing, wearing leather shoes, marital relations and putting on any kind of cream or lotion etc⁶⁹.

Morning

- Some⁷⁰ do not say the *bracha* of לי כל צרכי in the morning, since we don't wear leather shoes. Neither do they make the *bracha* when putting on leather shoes after the fast⁷¹. However there are those that do make the *Bracha* even in the morning⁷². Others make the *bracha* at night when they put on shoes.
- Whoever has *kavana* whilst reciting the beginning of Adon Olam, is guaranteed that his Tefillah is heard, the *Satan* cannot affect adversely his Tefillos on Rosh Hashana and Yom Kippur, and his enemies fall before him⁷³

If One Cannot Fast

- If you anticipate a *shailah* about eating on Yom Kippur, don't leave it for the last moment, as there are many *dinim* involved.
- In cases of *Pikuach Nefesh*, under Rabbinic and medical guidance, you eat in small periodic amounts. A Rov should be consulted.
- When one is required to eat on Yom Kippur for whatever reason,
 - No *Kiddush* is recited even when Yom Kippur falls on Shabbos⁷⁴.
 - There is no need to eat *challah* at all, let alone *lechem mishneh*. All this is because there never was a *takana* for *Kiddush* and *lechem mishneh* on Yom Kippur. This follows Shulchan Aruch haRav. Kaf haChayim *paskens* you should

⁶² שוע"ר סי' תרז:ב מט"א תריט ס"ח

⁶³ מט"א שם ס"י ראה אלף למטה י"ב

⁶⁴ סידור הרב בעל התניא

⁶⁵ שוע"ר תריט:א

⁶⁶ מט"א תריט סי'ב שוע"ר שם ס"ח

⁶⁷ מט"א שם

⁶⁸ שוע"ר שם ס"ט

⁶⁹ יומא ע"ג:

⁷⁰ שערי תשובה סי' תקנד סקי"ב סידור הרב

⁷¹ כה"ח סי' מ"ו סקי"ז שו"ת יבי"א ח"ה סי' כ"ה

⁷² משנ"ב סי' תקנ"ד סקל"א ועי' בקצה"מ סי' תריט סקנ"ז

⁷³ Rav Yehuda heChassid, Rav Hai Gaon, Rav Sherira Gaon

⁷⁴ שוע"ר תריח סי"ח



have *lechem mishneh*. Mateh Efraim says that even so, there is no need to exert oneself to get it⁷⁵.

- Before eating bread one must wash hands as is done throughout the year, just like the *kohanim* wash at *duchaning* even on Yom Kippur⁷⁶.
- If you ate enough *hamotzi* that requires *Birkas hamazon*, you add רצה for Shabbos and "יעלה ויבוא...ביום הכיפורים הזה ביום סליחת העון הזה ביום מקרא קודש הזה". However, if you forgot either, you do not go back as is always the דין in a meal where there is no obligation to have bread *davka*⁷⁷.
- Nowadays, children under bar or bas mitzvah need not fast the entire fast⁷⁸.
 - From age 9 or 10, they should try fast partially.
 - Making children under that age fast at all, when they wish to eat, is an error⁷⁹.
 - Make sure the children make *brochos* before eating.
- Preparing food on Yom Kippur for children or ill people is permissible. Otherwise it is better avoided so as not to mistakenly eat⁸⁰. Thus, you should not prepare food for after the fast until the fast is over.

Washing

- All washing is prohibited. Neggel vasser should be up to the knuckles (6 times). If you need to wash out your eyes, you may do so⁸¹.
- Kohanim wash the entire hand for *duchaning*. Some have the minhag that the Kohanim wash the entire hand, even past the knuckles, already in the morning⁸².
- A Kallah within 30 days of the wedding can wash her face and hands⁸³.
- When entering the bathroom, the *kittel* should be removed along with the Tallis (and *gartel*)⁸⁴ as they are both clothing designated for davening only.

Motzei Yom Kippur

- Strictly speaking, there is no problem to blow the Shofar a little before צאת הכוכבים. However, since people are used to the Shofar being the signal for the end of the fast, it is better to blow after צאת הכוכבים⁸⁵.
- We do not remove the *tallis* for Maariv until after Kiddush Levonah⁸⁶. But you take the *Tallis* off your head and wear a hat instead, since night is not the time for *Tzitzis*⁸⁷. Others leave the *tallis* on their head for Maariv too.
- If you mistakenly said "המלך הקדוש" or "המלך המשפט" do not go back⁸⁸.
- If you mistakenly said "זכרנו לחיים", or any other of the additions of *Aseres Yemei teshuva*

⁷⁵ שו"ע"ר שם מט"א תריח סי"ז

⁷⁶ שש"כ פל"ט סעי' ל"א

⁷⁷ מט"א שם

⁷⁸ שו"ע"ר תרטו ס"ו

⁷⁹ תרטז ס"ה

⁸⁰ שו"ע"ר תריא ס"ט

⁸¹ שו"ע"ר תרי"ג ס"ב וג' משנ"ב שם

⁸² רמ"א תרי"ג ועי' קצה"מ תרי"ג ס"ק"ו

⁸³ שו"ע"ר תרי"ג ס"ח

⁸⁴ ט"ז סי' כ"א ס"ק"ג שו"ע"ר סכ"א:ג מט"א תרי"ב

⁸⁵ מט"א סי' תרכ"ג ס"ז בסופו

⁸⁶ מט"א תרכ"ד ס"ד

⁸⁷ שו"ע סי' י"ח:א שערי תשובה סי' י"ח סק"ב

⁸⁸ משנ"ב סי' ק"ח סק"א וסי' ק"ח סקל"ח



- If you are still in the middle of that bracha, you need only go back to the beginning of that bracha.
- If you past that bracha, you finish Shmoneh Esrei and when finished, it is proper to repeat Shmoneh Esrei after as a ⁸⁹ תפלת נדבה
- On Motzei Yom Kippur we wish each other a *gut Yom Tov*⁹⁰.
- If your candle went out during Yom Kippur light it again now to burn fully⁹¹.
- We end up fasting 26 hours on Yom Kippur (Or at least 25 and a bit), corresponding to the *Gimatriya* of *Yud Kay Vav Kay*⁹².
- It is proper to wash the entire hand for *neggel vasser* without a bracha even a *Kohein* that washed his entire hand on Yom Kippur for *Duchaning*⁹³
- *Havdala* on Motzei Yom Kippur is always with wine and a candle (unlike other *Yamim Tovim*). The candle may only be one that was lit from before Yom Kippur (or at least a candle that was not lit by a match but rather, lit from that candle)⁹⁴.
 - If you don't have one, skip the candle entirely⁹⁵ even though Yom Kippur falls out on Shabbos.
- It is preferable to combine another wick to the candle so you have two wicks for *havdala*⁹⁶.
- It is best to have a 24 hour candle from before Yom Kippur dedicated to the purpose of *havdala* after Yom Kippur.
- If you don't have a dedicated candle, you may only use the *Yahrzeit* candle or *Lebedike Licht* if you combine another candle or match to it⁹⁷ so as not to make a brocha on a candle used for a different mitzvah⁹⁸
- This year, being *motzei Shabbos* we use *besamim* too.
- Make *Kiddush levana* if possible since we are in a state of joy sure that Hashem blessed us with a health good year⁹⁹.
- We sit down to a proper full Seudah¹⁰⁰. This *Seudah* draws down *gashmiyus* for the whole year.
- We get involved in a *mitzvah* immediately and begin building the Succah on *Motzei* Yom Kippur. At the very least, make sure to discuss the building of the Succah. Some learn a little *Mishnayos Succah* to be *yotzeh*¹⁰¹.

⁸⁹ קצה"ש סי' כ"א ס"ד ובבד"ה סק"ט

⁹⁰ מט"א תרכד ס"ה ועי' בקצה"מ שם

⁹¹ שוע"ר סי' תרי"ח

⁹² עי' ס' השיחות מרבי מהריי"ץ תש"ה חב"ד

⁹³ ס' המנהגים חב"ד נטעי גבריאל סי' נ"א:ל

⁹⁴ שוע"ר סי' תרכד סעי' ג-ה

⁹⁵ ערוך השולחן סי' תרכד ס"ו

⁹⁶ שוע"ר סי' רצ"ח:ד

⁹⁷ שוע"ר תרכד:ח

⁹⁸ אלף למגן תרכד-ז

⁹⁹ רמ"א סי' תכו מט"א תרכד:ד

¹⁰⁰ שוע"ר תרכד:ט

¹⁰¹ מט"א תרכד סט"ו

